

Brackenridge Civil Group Inc

www.brackenridgecivil.com

April 30, 2007

Carol Lewis
Director of Operations
Peck-Jennings

Dear Ms. Lewis:

This letter confirms our engagement to prepare the bridge deck rehabilitation design for Peck-Jennings. It sets out the scope of the work, the fee, and the terms under which we will proceed. Signed and returned, one copy of it stands as our agreement. I have kept it plain, so that it records what we discussed and asks nothing you did not expect from that conversation.

The Work

We will prepare a rehabilitation design for the bridge deck. The scope covers the assessment of the existing deck condition, from the record drawings you provide and from our own field observation; the design of the concrete repairs and the wearing surface; the deck drainage and the treatment of the joints; and the traffic and staging notes the work will require. The set will be prepared to the standard the reviewing authority expects at submittal, and the cover sheet will be issued under seal.

We will coordinate the Peck-Jennings deck rehabilitation design as a single set, so that the repair details, the drainage, and the staging agree with one another before the drawings are sealed. On a rehabilitation, the observed condition governs the design, and so the repair limits and the quantities will follow from our examination of the deck rather than from the record drawings alone. Where our design meets work that is properly the contractor's or another party's, our sheets will note the interface and stop there. The scope does not extend to construction-phase inspection or to material testing. We would take up either of those separately if you wished, on terms we would set at that time.

We will assemble the completed sheets as a package suitable for the reviewing authority, and we will respond to the comments that come back on it as part of this design. Should a review require substantial rework beyond the ordinary, I will raise it with you before that work proceeds. The aim throughout is a set a contractor can build the rehabilitation from and a reviewer can approve without guesswork.

Our Approach

I walk a structure before I draw it, and I run the quantities myself rather than accept a figure I have not checked. The design will proceed from your record drawings and from our own observation of the deck as it stands, and I will hold the set to what the field conditions will actually support. We will keep you informed as the design develops, in short progress reports and in meetings when a decision is yours to make, and we will not let a question that is yours to decide sit unasked. Nothing leaves this office until it has been reviewed on my desk and I am satisfied it is correct. I, Mark Todd, will direct the work and seal each sheet before it is issued.

Assigned Staff

The design will be carried by our engineering staff. Pamela Warren, our Project Engineer, will handle the deck drainage and the coordination with the reviewing authority, and she will cite the governing standard on each detail before it is drawn. Jason Jordan will prepare the roadway, approach, and staging sheets and keep the standard details current across the set. Kimberly Branch will draft the repair details and run the quantity takeoffs that stand behind the fee. I will review and seal the completed set myself.

Fee and Commencement

Our fee for the design is \$114,000, a fixed amount for the scope described above. We will begin the work on May 10, 2007. The design is a compact one, and we expect it to run about four months from commencement, subject to the timeliness of the record information and of the reviews on your side. If the scope changes in a way that bears on the fee, I will raise it with you, and we will settle it before any additional work proceeds.

Fees and Payment

We will invoice against the fee monthly as the work proceeds, and our invoices are due within thirty days of receipt. The fee covers our staff and their time. It does not cover out-of-pocket costs such as reproduction, delivery, and agency or permit fees; those we bill at cost. Where such a cost is of any consequence, we will agree it with you before it is incurred, and a small and routine one we will simply carry on the next invoice.

Term and Termination

Either of us may end this engagement on fourteen days written notice. If Peck-Jennings ends it, you will owe us for the work properly performed to that date and for

costs already committed on your behalf, and nothing further. On termination we will deliver the work in progress in the form it then stands, and the drawings remain your property to the extent you have paid for them.

Confidentiality

We will treat the information you provide in the course of this work as confidential and use it only for this design. That obligation binds our whole staff and continues after the engagement ends. Drawings we seal and issue become part of the project record in the ordinary course, and nothing in this paragraph restricts that.

Limitation of Liability

We will perform the design with the care and skill ordinarily exercised by civil engineers practicing in this area at this time, and we stand behind our work to that standard. We do not warrant the performance of contractors or others we do not control, nor the results of construction carried out from our drawings without our involvement. Our liability to you under this engagement is limited to the amount of our fee, except where the law does not permit such a limit.

Governing Law

This agreement is governed by the law of the state in which our firm practices, and any dispute under it will be heard in the courts of that state. Should any single provision be found unenforceable, the remainder of this letter stands.

If these terms reflect our understanding, please sign both copies below, keep one for your files, and return the other to this office. On receipt I will schedule the field visit and begin the work.

Very truly yours,

Mark Todd

Principal Engineer

Date: April 30, 2007

Carol Lewis

Director of Operations, Peck-Jennings

Date: April 30, 2007